

Circular Memo.No.268/Spl.C/A1/2003-2, G.A. (Spl.C) Dept., dt.09.06.2004 regarding communication of Judgment of A.P. High Court on sanction of prosecution once accorded cannot be withdrawn.

Subject Heading : Prosecution Cases – Sanction of Prosecution once accorded cannot be withdrawn or rescinded by the Government – Communication of Judgment of A.P. High Court - Regarding.

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An extract of the Judgment of Andhra Pradesh High Court in W.P.No.4231/2001, dated 21.01.2003 is furnished to all Departments of Secretariat / all Heads of the Departments. They are requested to take into account the Judgment of the High Court of Andhra Pradesh while processing the cases pertaining to withdrawal of prosecution.

Copy of :

AN EXTRACT OF THE JUDGEMENT OF THE HIGH COURT OF ANDHRA PRADESH IN W.P.No.4231/2001, dated 21.01.2003

(2003 Cri.L.J.A.P.1986) (Sri M.Veraiah Chowdary
Vs. State of Andhra Pradesh)

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“Sec.321 of the Cr.P.C. provides for withdrawal of prosecution. It empowers the Public Prosecutor or the Assistant Public Prosecutor, in-charge of the case to withdraw the cases from the trial with the consent of the Court. On such withdrawal, depending on the stage of the case, the accused shall be discharged or, as the case may be, acquitted. In Abdul Karim Vs. State of Karnataka, AIR 2001, the Supreme Court held that the decision of the Public Prosecutor to withdraw the case from the prosecution is not absolute and it should be on consideration of all the relevant material and in good faith. The Court while granting its consent, has to ensure that the Public Prosecutor has applied his mind independently and that he is acting in good faith”.

“If, therefore, follows that the decision to withdraw from the prosecution should emanate from the Public Prosecutor, which in turn, shall be on a dispassionate consideration of the matter. The Public Prosecutor is the creature under the Cr.P.C. and he cannot be said to be subordinate to Government. In the given case, the Government being prosecuting agency can place the necessary material before the Public Prosecutor. On a consideration of the same, the ultimate decision to withdraw from or proceed with the prosecution should rest with the Public Prosecutor. In view of the Judgment of the Supreme Court in Abdul Karim’s case, the decision of Public Prosecutor to withdraw the prosecution under Sec.321 Cr.P.C. is justifiable”.

“the impugned order does not, by itself, terminate the prosecution. It is only as and when the concerned Public Prosecutor comes forward with a Memo. before the trial court seeking permission to withdraw, the trial court has to consider the same on the principles laid down by the Supreme Court in the said decision”.